

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-23

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT,

RESPONDENT.

**MEMORANDUM REGARDING THE PROTECTION OF INADVERTENTLY
PRODUCED PRIVILEGED DOCUMENTS**

Pursuant to the Presiding Officer’s May 15, 2026 Fourth Amended Scheduling Order, Dkt. 55 (the “May 15 Order”), Complainant Samsung Electronics America, Inc. (“SEA”), submits this Memorandum in connection with SEA’s claw back of inadvertently produced documents challenged by Respondent HMM Co., Ltd. (“HMM”). In a meet and confer held yesterday, HMM advised SEA that it is challenging every inadvertently produced document clawed back by SEA on a blanket basis. It is SEA’s view that HMM has not conducted a good-faith evaluation of the privilege claims analysis, violating the protective order between the parties and the May 15 Order. Placing the burden on the Presiding Officer to assess the claw back documents, when HMM did not even conduct an individual analysis to narrow the issues as expected, is a backwards process. HMM should forfeit its ability to challenge the documents on a blanket basis.

Should the Presiding Officer undertake the individual analysis that HMM failed to do, SEA is submitting all the inadvertently produced documents, as well as additional privileged documents that were not produced but were included as background documents on SEA's claw back privilege log. This totals 325 documents for *in camera* review. In a modern litigation, with over 3 million pages produced by SEA with the aid of technology assisted review, HMM's blanket objection to SEA's claw back is untenable. SEA should be permitted to claw back the privileged documents.

I. Procedural Background

On Friday, April 24, 2026, opposing counsel for the *Samsung Electronics America, Inc v. COSCO Shipping Lines Co., Ltd.*, Dkt. No. 24-16 matter identified three [REDACTED] documents within SEA's production. SEA promptly determined the materials were privileged work product and on Monday, April 27, 2026, notified counsel to claw back those documents and advised that SEA was undertaking to review if other, related documents had also been inadvertently produced. SEA's further review identified additional, similar documents inadvertently produced in this proceeding. On May 8, 2026, SEA transmitted a formal claw back notice and related privilege log to HMM's counsel, notifying HMM that it was clawing back 158 inadvertently produced documents (the "Claw Back Documents").¹ At the same time, SEA provided an initial claw back log prepared pursuant to the parties' Protective Order, identifying for each document the date, Bates number, unified author, email addresses, privilege type, document type, and privilege description. The log also listed five privileged documents that were not produced but were included to provide context for why the Claw Back Documents are privileged (the "Background Documents"). SEA explained in its initial notice, and again during a meet and confer that Friday evening, that the Claw Back Documents were prepared at counsel's direction in anticipation of

¹ SEA's claw back was performed in accordance with ¶¶ 14-15 of the parties' protective order, FRCP 26(b)(5)(b), and FMC Practice (applying FRCP 26(b)(5)(B) and FRE 502).

litigation [REDACTED]

[REDACTED] SEA further explained that the Claw Back Documents were inadvertently produced because they were comprised of communications [REDACTED] [REDACTED] and were not facially reflective of their privileged nature. On May 13, 2026, HMM counsel advised Your Honor of the Claw Back Documents and stated that “[i]f the parties are unable to resolve this matter, a status conference, and/or in camera inspection of the claw back documents, and/or motion practice might be necessary.” The issue was addressed in the May 15 Order, stating in part that, “[i]f the parties have not resolved the privilege issue by **May 22, 2026**, they must submit the disputed documents on that date for *in camera* review.”

SEA continued its review and, on May 20, 2026, provided HMM with an amended claw back log (the “Claw Back Privilege Log”).² The Claw Back Privilege Log identified 12 additional Claw Back Documents, listed 151 additional Background Documents, supplied more detailed privilege descriptions, and added “unified title” metadata for all entries, all to aid HMM’s evaluation of SEA’s privilege claims. On May 21, 2026, the parties held another meet and confer, to which SEA came prepared to address any remaining questions as to individual entries on the log, narrow the issues, and reduce documents that would need to be reviewed *in camera*.

HMM did not approach the May 21 meet and confer with that same objective. HMM took the unilateral position that it (i) reviewed all the Claw Back Documents and saw no attorneys on them; and (ii) could not review SEA’s Background Documents so had no reason to believe they were related to the Claw Back Documents. Refusing to take a closer look at the Claw Back

² The Claw Back Privilege Log includes entries designated SEA-PRIV-00001 through SEA-PRIV-00145, reflecting emails that were not produced to HMM because they are privileged and/or not relevant or responsive. These documents were added sequentially with the Claw Back Documents to add context to SEA’s privilege assertions by demonstrating [REDACTED] [REDACTED] and providing another foundational basis for the work product privilege.

Privilege Log, ask any follow-up questions on individual entries, explain their substantial need or undue hardship relating to the Claw Back Documents, or request additional materials for assessment, HMM concluded that the Presiding Officer should review all 325 Background and Claw Back Documents to determine privilege.³

HMM's position was not consistent with a meaningful meet and confer. Although HMM stated that it had reviewed the Claw Back Documents and saw no reference to legal personnel or other indicia of legal involvement, it did not request a privilege key identifying persons on the emails, ask SEA to identify attorneys or legal personnel on the communications, or seek any other clarifying information. During the meet and confer, SEA explained that [REDACTED]

[REDACTED] was reflected in the Claw Back Privilege Log and Background Documents, and that SEA was prepared to answer questions or address specific objections. HMM nevertheless declined to engage on any specific document or category, asked no clarifying questions, and articulated no substantive document-specific position. Because the meet and confer process is intended to narrow disputes before judicial intervention, HMM's decision to defer wholesale to the Presiding Officer unnecessarily burdens the review process, disregards the Presiding Officer's intent in the May 15 Order and undermines the parties' Protective Order.⁴

³ Certain documents identified on the Claw Back Privilege Log are in the Korean language. Due to the abbreviated interval between HMM's request that all documents be submitted for *in camera* review and the Court-ordered production of those materials the following day, SEA did not have sufficient time to obtain certified English translations of those documents.

⁴ HMM's conduct during the May 21, 2026 meet and confer also fell short of the good-faith standard required by 46 C.F.R. § 502.71. *See, e.g. Gunn v. Stevens Sec. & Training Servs., Inc.*, No. 17 C 6314, 2018 WL 1737518, at *4 (N.D. Ill. Apr. 11, 2018) (finding the parties had not met and conferred in good faith and explaining that "a party that steadfastly maintains a position without support is not engaging in a good faith discussion"). Following the meet and confer, SEA provided HMM with case analysis addressing federal courts' rejection of generalized privilege log objections, in a final but unsuccessful effort to resolve the dispute without further judicial

Because HMM has offered no document-specific written objections and has not meaningfully engaged with SEA on the Claw Back Privilege Log, SEA can respond only to the general points HMM raised during the meet and confer.⁵ SEA submits the Claw Back Privilege Log, the documents identified on that log, and a key to the log to assist the Presiding Officer's review. The sections that follow set out the [REDACTED] factual background, explain why the Claw Back Documents are protected work product, and address the attorney-client and common-interest protections applicable to emails involving [REDACTED]

II. Work in Anticipation of Litigation Supporting Claw Back⁶

All of the Claw Back Documents are related to [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

involvement. *See, e.g., In re Delphi Corp.*, 276 F.R.D. 81, 87 (S.D.N.Y. 2011) (the court denied a request for *in camera* review where the requesting party failed to identify deficiencies in specific entries and instead relied on a general challenge to allegedly “conclusory” descriptions).

⁵ Courts have not required the privilege holder to provide evidence establishing every element of privilege for each document absent a specific challenge. *See S.E.C. v. Beacon Hill Asset Mgmt. LLC*, 231 F.R.D. 134, 1441 (S.D.N.Y. 2004) (“[a]ny other procedure would transform the requirement of providing an index of withheld documents into an obligation to provide evidence of every element of the privilege as to every document withheld.”).

⁶ This section is provided solely to supply background and contextual information relating to the Claw Back Documents. To the extent it references or reflects potentially privileged or protected material, such disclosures are limited in scope and are not intended to, and shall not, constitute a waiver of any applicable privilege, protection, or immunity, including any subject matter waiver.

⁷ Rows 1-5 [SEA-Priv-00006-SEA-PRIV-00010].

⁸ [REDACTED]

[illegible]

⁹ Rows 45-46 [SEA HMM-2500175 - SEA HMM-2500180].

¹⁰ Row 23 [SEA-PRIV-00001], Row 24 [SEA-PRIV-00028], Row 28 [SEA-PRIV-00032]; Rows 29-32 [SEA_HMM-0556188-211]; Row 33 [SEA_HMM-0556216], Row 34 [SEA_HMM-0556217], Rows 35-36 [SEA_HMM-0556250-52].

¹¹ Row 47 [SEA-PRIV-00005]; Row 48 [SEA-PRIV-00038].

¹² Rows 49-50 [SEA_HMM-0799606-SEA_HMM-0799612]; Rows 51-52 [SEA_HMM-0806342-SEA_HMM-0806348]; Row 53 [SEA_HMM-3102260-SEA_HMM-3102264]; Row 54 [SEA_HMM-1892851-SEA_HMM-1892857]; Row 57 [SEA_HMM-1892865].

¹³ Row 91 [SEA-PRIV-00044].

¹⁴ Row 89 [SEA-PRIV-00042].

¹⁵ Row 88 [SEA-PRIV-00041].

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] It is public record that the first FMC complaint filed against an ocean carrier by SEA was filed on October 13, 2022. [REDACTED]

[REDACTED] and the Complaint was filed on May 30, 2024.

III. The Work Product Doctrine Protects the [REDACTED]

The documents at issue are protected work product because they were compiled and created by SEA personnel at counsel’s direction as part of an [REDACTED] undertaken in anticipation of litigation. Under Federal Rule of Civil Procedure 26(b)(3)(A), documents prepared “by or for” a party or its representative—including attorneys, consultants, and agents—in anticipation of litigation are protected from discovery. *See also Hickman v. Taylor*, 329 U.S. 495, 511 (1947). The D.C. Circuit applies the “because of” test, under which a document qualifies as work product if it “can fairly be said to have been prepared or obtained because of the prospect of litigation.” *United States v. Deloitte LLP*, 610 F.3d 129, 136 (D.C. Cir. 2010) (citing *In re Sealed*

¹⁶ Row 103 [SEA-PRIV-00054].

¹⁷ *See e.g.* Row 88 [SEA-PRIV-00041], Row 89 [SEA-PRIV-00042], Row 94 [SEA-PRIV-00047], Row 95 [SEA-PRIV-00048], Row 96 [SEA-PRIV-00049], Row 98 [SEA-PRIV-00051], Row 100 [SEA-PRIV-00053], Row 103 [SEA-PRIV-00054], Row 116 [SEA-PRIV-00057], Row 121 [SEA-PRIV-00058], Rows 123-29 [SEA-PRIV-00060-SEA-PRIV-00066], Rows 131-32 [SEA-PRIV-00067-SEA-PRIV-00068], Rows 141-42 [SEA-PRIV-00069-SEA-PRIV-00070], Row 166 [SEA-PRIV-00073], Row 169 [SEA-PRIV-00076], Row 171 [SEA-PRIV-00078], Row 172 [SEA-PRIV-00079], Row 188 [SEA-PRIV-00091], Rows 190-91 [SEA-PRIV-00093- SEA-PRIV-00094], Row 193 [SEA-PRIV-00096], Row 219 [SEA-PRIV-00122] and Row 237 [SEA-PRIV-00123].

Case, 146 F.3d 881, 884 (D.C. Cir. 1998)).¹⁸ The prospect of litigation need not be imminent; it need only be fairly foreseeable, supported by a subjective belief that was objectively reasonable. *In re Sealed Case*, 146 F.3d at 884; *McKinley v. FDIC*, 744 F. Supp. 2d 128, 144 (D.D.C. 2010).

The doctrine does not require an attorney’s name to appear on the face of the document, as wrongfully suggested by HMM during the meet and confer. Recognizing the realities of litigation, and the need for attorneys to rely on others to collect information and compile materials for their use, the Supreme Court held in *United States v. Nobles*, 422 U.S. 225, 238–39 (1975), that work product protection extends to materials “prepared by agents for the attorney as well as those prepared by the attorney himself.” Indeed, the D.C. Circuit recognized that under Rule 26(b)(3), work product protection covers materials prepared by any party representative and information collected in anticipation of litigation with ongoing attorney involvement and guidance. *See, e.g., U.S. Equal Emp. Opportunity Comm’n v. George Washington Univ.*, 342 F.R.D. 161 (D.D.C. 2022); *Hertzberg v. Veneman*, 273 F. Supp. 2d 67, 75 (D.D.C. 2003); *United States v. Adlman*, 134 F.3d 1194, 1202, 1204 (2d Cir. 1998).

Here, the record satisfies the work-product standard. As the factual background shows, an

[REDACTED] was conducted – at the instruction of counsel and [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

¹⁸ The same standard is applied by the Second, Third, Fourth, Seventh, and Eighth Circuits.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] that courts look for in assessing work product claims over downstream documents. *See U.S. v. ISS Marine Servs., Inc.*, 905 F. Supp. 2d 121, 134-35 (D.D.C. 2012); *In re OpenAI, Inc.*, 802 F. Supp. 3d 688, 696 (S.D.N.Y. 2025). Accordingly, the Claw Back Documents should be entitled to the work product protection and SEA should be entitled to claw them back from HMM.

IV. Corporate Affiliates on Communications Do Not Destroy Privilege

Communications involving [REDACTED] remain privileged under the corporate-affiliate doctrine, which permits parents, subsidiaries, and affiliates to share privileged information without waiver where the disclosure is made in connection with actual or anticipated litigation, furthers a common interest, and remains confidential as against adversaries.¹⁹ *Holland v. Island Creek Corp.*, 885 F. Supp. 4, 6 (D.D.C. 1995) (holding entities shared a common interest and that, although litigation was not pending, disclosure was made “with an eye toward litigation”) (citing *United States v. Am. Tel. & Tel. Co.*, 642 F.2d 1285, 1298–99 (D.C. Cir. 1980) (“[A] corporate client includes not only the corporation . . . but also parent, subsidiary, and affiliate corporations.”) (internal quotation marks and citation omitted)).

SEA and [REDACTED] copied on some of the [REDACTED] communications

¹⁹ The Background Documents contain [REDACTED]
[REDACTED] *See, e.g.*, Rows 1-5 [SEA-PRIV-00006-SEA-PRIV-00010], Rows 21-22 [SEA-PRIV-00026-SEA-PRIV-00027], Row 92 [SEA-PRIV-00045], and Row 317 [SEA-PRIV-00137]. [REDACTED]

shared a common interest [REDACTED]

[REDACTED] Their inclusion therefore does not waive privilege. This is especially true for entries reflecting [REDACTED]

V. CONCLUSION

The Claw Back Privilege Log was prepared in good faith and complies with the parties' Protective Order. The Background Documents confirm counsel's direction of the Internal Investigation, and the additional Claw Back Documents identified through SEA's ongoing review consist of attorney-client communications and/or work product prepared in anticipation of litigation. SEA acted promptly to address the inadvertent production and claw back the documents as the Protective Order contemplates. HMM's blanket challenge should be rejected so the parties can complete discovery and proceed to resolution of SEA's reparations claims.

Respectfully Submitted,

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CERTIFICATE OF SERVICE

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